

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #07	CCRB Case #: 201802794	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 04/02/2018 10:30 PM	Location of Incident: 14th Precinct stationhouse holding cell	18 Mo. SOL 10/2/2019	Precinct: 14
Date/Time CV Reported Tue, 04/03/2018 3:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/11/2018 11:02 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Johnson	00902	956757	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Paul Aparo	579	945137	MTS PCT
2. POM Justin Slater	29946	926131	MTS PCT
3. POM John Maxcy	00760	927160	MTS PCT
4. POM Tony Balcan	16670	927896	MTS PCT
5. POM Lars Frantzen	30801	936615	MTS PCT
6. POM Thomas Koerner	08618	928588	MTS PCT
7. POF Mary Vecchio	01641	961411	MTS PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Johnson	Force: Police Officer Christopher Johnson used physical force against § 87(2)(b)	A . Exonerated
B . POM Christophe Johnson	Abuse: Police Officer Christopher Johnson did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated

Case Summary

On April 3, 2018, Sgt. Paul Aparo of the 14th Precinct called IAB to report this incident. Original Log #2018-13183 was generated and received at the CCRB on April 11, 2018.

On April 2, 2018, at approximately 10:15pm, § 87(2)(b) was arrested § 87(2)(a) 160.50 outside 450 Lexington Avenue in Manhattan. At the 14th Precinct stationhouse, PO Christopher Johnson, PO Justin Slater, and Sgt. Paul Aparo lodged § 87(2)(b) in a holding cell. While doing so, § 87(2)(b) refused to relinquish his jacket, which had strings protruding from it. Sgt. Aparo and PO Johnson entered the holding cell, removed the jacket, and placed § 87(2)(b) in handcuffs. While placing § 87(2)(b) in handcuffs, PO Johnson pulled § 87(2)(b)'s left arm behind his back, causing pain (**Allegation A: Force-Exonerated**). Later, § 87(2)(b) allegedly told PO Johnson that his elbow was injured and that he needed medical attention, which PO Johnson refused to obtain (**Allegation B: Abuse of Authority-Unsubstantiated**). The next morning, § 87(2)(b) was transported to § 87(2)(b) and diagnosed with § 87(2)(b).

Video footage was obtained from the 14th Precinct stationhouse cameras. It depicts the officers removing § 87(2)(b)'s jacket and then placing him into handcuffs (For full video see BR 01).

Findings and Recommendations

Allegation (A) Force: Police Officer Christopher Johnson used physical force against

§ 87(2)(b)

It is undisputed that, while attempting to handcuff § 87(2)(b) PO Johnson pulled § 87(2)(b)'s left arm behind his back. § 87(2)(b) felt pain and was later diagnosed with a § 87(2)(b) . § 87(2)(g)

§ 87(2)(b) testified that on April 2, 2018 he was arrested following a fight involving multiple acquaintances. § 87(2)(b) was then transported to the 14th Precinct stationhouse. While being lodged in a holding cell, § 87(2)(b) requested to speak to a sergeant because he was upset. Sgt. Aparo arrived and instructed § 87(2)(b) to remove his shoe laces and § 87(2)(b) complied. Sgt. Aparo then asked § 87(2)(b) to remove the strings from the hood of his jacket. § 87(2)(b) refused because he did not want to damage the jacket. Sgt. Aparo told him he could remove the whole jacket if he didn't want to remove the strings. § 87(2)(b) refused that as well because he was cold. § 87(2)(b) placed the jacket over himself like a blanket and lay on a bench in the holding cell. Sgt. Aparo asked for the jacket again and § 87(2)(b) replied, "If you take the strings out, there's gonna be a problem." § 87(2)(b) testified that he was referring to him filing a complaint against Sgt. Aparo and was not threatening physical force. However, he testified, it appeared that the officers interpreted it to be a physical threat. Sgt. Aparo entered the cell, grabbed the fabric of § 87(2)(b)'s shirt and asked, "what problem?" § 87(2)(b) then grabbed the fabric of Sgt. Aparo's shirt. Sgt. Aparo pulled on § 87(2)(b)'s shirt and attempted to grab his arm. Other officers entered the cell area and grabbed § 87(2)(b) as well. They then pulled § 87(2)(b) to the floor, causing him to land on his chest. Prior to being pulled to the floor, § 87(2)(b) testified that he was moving his body and his arms back and forth to loosen the officers' grips. Once on the floor, § 87(2)(b) began pulling his arms towards his center mass, under his

body. § 87(2)(b) was not successful in breaking the officers' hold on him. As officers were pulling § 87(2)(b)'s arms behind his back, § 87(2)(b) felt a popping feeling in his left elbow and felt intense pain. § 87(2)(b) screamed in pain but none of the officers responded. § 87(2)(b) was handcuffed and left in the cell (BR 02).

§ 87(2)(a) PHL § 18(6)



2018-08-30_13-24-58.mp4

At 0:02 in the video above, Sgt. Aparo and PO Johnson enter the holding cell where § 87(2)(b) is seated. At 0:08, § 87(2)(b)'s jacket is tossed out of the cell and PO Johnson and Sgt. Aparo appear to be holding § 87(2)(b)'s arms. The officers begin struggling with § 87(2)(b). At 01:55, § 87(2)(b) is lifted and placed on his chest. PO Johnson is on § 87(2)(b)'s left side appearing to be pulling his left arm behind his back. Sgt. Aparo is on § 87(2)(b)'s right side doing the same. The officers get handcuffs on § 87(2)(b) and leave the cell area (BR 03).

PO Johnson testified that he walked § 87(2)(b) to the holding cells in the 14th Precinct stationhouse. § 87(2)(b) walked into an individual cell and sat on the bench inside the cell. PO Johnson asked § 87(2)(b) to remove his shoe laces. After initially refusing § 87(2)(b) did so. PO Johnson observed there to be strings in § 87(2)(b)'s jacket, which was on the bench next to him. PO Johnson asked the see the jacket to check how long the strings were and if they could be removed. PO Johnson testified that the shoe laces and any other long strings had to be removed prior to lodging § 87(2)(b) because they could present a threat to § 87(2)(b)'s safety. § 87(2)(b) refused to give PO Johnson the jacket. PO Johnson continued to ask § 87(2)(b) for the jacket for another two to three minutes. During that time, § 87(2)(b) was refusing to give it up and stating that PO Johnson would have to come in and get it. PO Johnson asked PO Slater, the cell attendant, to retrieve Sgt. Aparo as he wanted supervision prior to entering the cell to retrieve the jacket. Sgt. Aparo briefly spoke to § 87(2)(b) who still refused to give up the jacket. Sgt. Aparo and PO Johnson then entered the cell. They immediately grabbed § 87(2)(b)'s arms. Sgt. Aparo grabbed the jacket and threw it out of the cell. As the officers were holding § 87(2)(b)'s arms, he tensed his arms and moved them around. PO Johnson testified that he believed that § 87(2)(b) might attempt to strike one of the officers if they let go of his hands. For that reason, they had to maintain control of his hands even after the jacket was removed from the cell. PO Johnson asked § 87(2)(b) if he would strike them if they let go and § 87(2)(b) replied, "fuck you." PO Johnson then told § 87(2)(b) that if he relaxed, they would let go of his arms. PO Johnson couldn't recall if § 87(2)(b) had any response to that. § 87(2)(b) continued to tense his arms and move them around. PO Johnson decided that they had to handcuff § 87(2)(b) for their safety. He believed that if they didn't handcuff him, § 87(2)(b) would strike one of the officers. PO Johnson attempted to pull § 87(2)(b)'s arm behind his back, however was initially unable to do so because § 87(2)(b) was tensing his arms and pulling them towards the center of his body. Eventually, the officers were able to pull § 87(2)(b)'s arms behind his back and handcuff them. § 87(2)(b) never expressed any pain and PO Johnson did not observe or hear any injuries to § 87(2)(b)'s arm. PO Johnson initially couldn't recall what position § 87(2)(b) was in when they handcuffed him. Upon reviewing the video footage during his CCRB interview, PO Johnson testified that they placed § 87(2)(b) onto the floor because it allowed them more leverage to

place § 87(2)(b) into handcuffs. PO Johnson was shown the Threat, Resistance and Injury (TRI) report he filled out in regards to this incident and testified that he did not know how § 87(2)(b) suffered bone chips to his elbow, as indicated in the TRI (BR 04).

Sgt. Aparo testified that when he entered the holding cell area, § 87(2)(b) was seated in an individual holding cell with his jacket on the bench next to him. Sgt. Aparo asked § 87(2)(b) for his jacket and § 87(2)(b) refused. Sgt. Aparo then entered the cell to retrieve the jacket. PO Johnson followed him. Sgt. Aparo grabbed the jacket and threw it out of the cell. As Sgt. Aparo was grabbing the jacket, § 87(2)(b) stated that he was going to hit Sgt. Aparo. Immediately, Sgt. Aparo grabbed § 87(2)(b)'s right wrist before he could strike him. At the same moment, PO Johnson grabbed § 87(2)(b)'s left wrist. § 87(2)(b)'s arms remained tense but he did not move them around. PO Johnson asked § 87(2)(b) if he would calm down. § 87(2)(b) said no and that he was going to strike the officers. Sgt. Aparo testified that they remained in the cell after the jacket was removed because if they let go of § 87(2)(b)'s hands, Sgt. Aparo believed § 87(2)(b) would attempt to strike them. He believed this based on § 87(2)(b)'s tense arms and his statements to that effect. After approximately 30 seconds of holding § 87(2)(b)'s arms and telling him to calm down, Sgt. Aparo told PO Johnson to handcuff § 87(2)(b). Sgt. Aparo attempted to pull § 87(2)(b)'s right arm behind his back but was unable to do so because § 87(2)(b) tensed his arm and pulled it towards his chest. The officers stood § 87(2)(b) up but were still unable to overcome his resistance. PO Slater grabbed § 87(2)(b)'s legs and the officers all lowered § 87(2)(b) to the floor on his chest. Sgt. Aparo testified that they placed § 87(2)(b) on the floor to gain leverage to put his arms behind his back. After a few more seconds, Sgt. Aparo was able to pull § 87(2)(b)'s right arm behind his back. PO Johnson was able to pull § 87(2)(b)'s left arm behind his back. § 87(2)(b) never expressed any pain during the handcuffing process. Sgt. Aparo didn't hear or observe any injuries to § 87(2)(b)'s arms. During his testimony, Sgt. Aparo was presented with the TRI report he filled out in regards to this incident and testified that he did not know how § 87(2)(b) suffered bone chips in his elbow, as indicated on the report (BR 05).

§ 87(2)(g) After § 87(2)(b) refused to give up his jacket, which contained strings, Sgt. Aparo and PO Johnson entered the holding cell to retrieve it. While the officers were retrieving the jacket, § 87(2)(b) began stating that he was going to fight the officers. PO Johnson and Sgt. Aparo grabbed his arms and began to place him into cuffs, which § 87(2)(b) resisted by moving his arms and his body. § 87(2)(b) was placed to the floor to gain leverage and the officers placed handcuffs on § 87(2)(b). PO Slater did not hear or see any injuries to § 87(2)(b)'s person. During his testimony, PO Slater was presented with the TRI report filled out by Sgt. Aparo. PO Slater testified that he did not know how § 87(2)(b) suffered bone chips in his elbow, as indicated in the report (BR 06).

Force may be used when it is reasonable to ensure the safety of a member of service. NYPD Patrol Guide Procedure 221-01 (BR 07). The Patrol Guide defines Active Aggression at the "threat or overt act of assault (through physical or verbal means), coupled with the present ability to carry out the threat of assault. NYPD Patrol Guide Procedure 221-08 (BR 08).

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation (B) Abuse of Authority: Police Officer Christopher Johnson did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that he informed PO Johnson that he was in severe pain and needed to go to the hospital.

§ 87(2)(b) testified that approximately one to two hours after he was handcuffed in the cell, PO Johnson returned to the cell and took him to be fingerprinted and have his arrest photo taken. While this was going on, § 87(2)(b) informed PO Johnson that his elbow hurt and that he needed to go to the hospital. PO Johnson informed him that he would be taken to the hospital after he was fingerprinted. PO Johnson then returned § 87(2)(b) to the holding cell and never returned. § 87(2)(b) testified that his arm was slightly swollen but that the injury was not visible. He also testified that he was wearing a long sleeve shirt at the time. The next morning, § 87(2)(b) requested medical attention from an unidentified officer and he was taken to § 87(2)(b) a short while later (BR 02).

PO Johnson testified that he returned to take § 87(2)(b) to be fingerprinted and take his arrest photo. PO Johnson did not know specifically what time he did this. There was no other officer with his at this point. § 87(2)(b) complied with this process. § 87(2)(b) never complained of pain and didn't ask PO Johnson for medical attention. PO Johnson denied refusing to obtain medical attention for § 87(2)(b). PO Johnson was aware that the following morning § 87(2)(b) was taken the hospital but didn't know for what (BR 04).

Sgt. Aparo and PO Slater did not hear § 87(2)(b) express any pain or request medical attention. Both ended their tour shortly after § 87(2)(b) was handcuffed in their cell (BR 05, 06).

§ 87(2)(g)

. It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 09).

- PO Johnson has been a member-of-service for four years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming excessive force, false arrest, false imprisonment, unlawful detention, intentional and negligent infliction of emotional distress, negligence and the performance of police duties, and negligence in hiring and retaining competent and unfit police personnel and is seeking \$500,000 as redress. There is no 50H hearing scheduled (BR 10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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